



**Before the
NATIONAL TELECOMMUNICATIONS AND INFORMATION ADMINISTRATION
Washington, D.C. 20230**

COMMENTS

of the

ANA – ASSOCIATION OF NATIONAL ADVERTISERS

on the

**Request for Comment on the
“Initiative To Protect Youth Mental Health, Safety & Privacy Online”**

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November 16, 2023

On behalf of the Association of National Advertisers (“ANA”), we provide these comments (“Comments”) in response to the National Telecommunications and Information Administration’s (“NTIA”) request for public comment on the Biden-Harris Administration’s (“Administration”) “Initiative To Protect Youth Mental Health, Safety & Privacy Online” (“RFC”).¹ As a member of the U.S. government’s “Task Force on Kids Online Health & Safety,” NTIA has asked for “broad input and feedback from stakeholders” on potential risks, benefits, and industry efforts to mitigate harms associated with minors’ use of online platforms.² The ANA supports the Administration’s goal to advance the health, safety, and privacy of minors online.³ As the NTIA considers recommendations to the Administration on this topic, the ANA urges the agency to recognize and afford due weight to the significant benefits that advertising-supported online platforms offer minors by enabling access to information, enrichment opportunities, and resources that otherwise would be costly or unavailable to them.

As America’s oldest and largest advertising trade association, the ANA has long supported the efforts of brands, advertisers, marketing service providers, and countless other entities to provide clear and understandable offers of pricing for goods and services to consumers. The ANA’s mission is to drive growth for marketing professionals, brands and businesses, the industry, and humanity. The ANA serves the marketing needs of 20,000 brands by leveraging the 12-point ANA Growth Agenda, which has been endorsed by the Global CMO Growth Council. The ANA’s membership consists of U.S. and international companies, including client-side marketers, nonprofits, fundraisers, and marketing solutions providers (data science and technology companies, ad agencies, publishers, media companies, suppliers, and vendors). The ANA creates Marketing Growth Champions by serving, educating, and advocating for more than 50,000 industry members that collectively invest more than \$400 billion in marketing and advertising annually.

Our Comments first describe ways that advertising and advertising-supported platforms benefit minors, society, and the economy alike. We then summarize protections for minors under existing federal laws and robust self-regulatory codes and programs. We also discuss new state laws related to minors and social media use that have been subject to legal scrutiny for imposing unconstitutional limits on minors’ access to online messaging. Finally, we affirm our support for Congress’s enactment of comprehensive privacy protections for consumers across the United States—including minors—through passage of preemptive federal privacy legislation resembling the standards in Privacy for America’s [Principles for Privacy Legislation](#) (the “Framework”).⁴ The ANA supports the Administration’s goal of keeping minors safe online. We urge the NTIA to encourage the Administration to recognize the myriad ways that advertising benefits minors and society-at-large, and to support Congress in its efforts to pass comprehensive, preemptive federal privacy legislation to provide protections for all U.S. residents in ways that do not unreasonably hinder responsible advertising practices.

¹ 88 Fed. Reg. 67733-67739 (Oct. 2, 2023), located [here](#) (hereinafter, “RFC”).

² *Id.* at 67733.

³ NTIA defines “minors” as individuals under age 18. See RFC at 67734, n. 10.

⁴ Privacy for America, *Principles for Privacy Legislation*, located [here](#) (last visited Aug. 8, 2023) (hereinafter, “Privacy for America Framework”).

I. Advertising Benefits Minors, Society, and the Economy

The NTIA asks commenters to describe current, emerging, and potential benefits to minors associated with online platforms.⁵ Minors' ability to access a wealth of information online benefits them significantly by exposing them to diverse viewpoints and by connecting them to critical resources for their future. Advertising subsidizes this information minors may access for free or at a very low cost on today's Internet. Minors have come to expect open access to most online resources, and they benefit from exposure to a diverse array of easily accessible opinions, viewpoints, and content. Unreasonable limitations on minors' interactions with the Internet could hinder their ability to learn and grow by cutting them off from useful information and content that would otherwise be at their fingertips.

Teenagers are especially likely to feel the negative impacts of overly burdensome restrictions. Curtailing 16- and 17-year-olds' ability to reach new, interesting, and enriching online experiences would deprive them of the world's greatest informational resource during their most formative years. Rather than protecting these minors, recommendations that advocate for limitations on advertising and messaging capabilities would threaten minors' ability to access critical content and resources, including information about universities, trade programs, military recruitment, job opportunities, cars, apartments, and other topics. As the NTIA develops its report, we encourage it to prioritize solutions that are nuanced and tailored enough to reflect the needs of minors in different age groups and to preserve the significant benefits minors enjoy from free and open Internet access.⁶ Recommendations in this area should avoid imposing overly prescriptive mandates for broadly construed age ranges, as a 7-year-old child should not be treated the same as a 17-year-old teenager. A one-size-fits-all approach would disadvantage both these age groups by failing to account for the significant differences among these groups' use of the Internet.

The NTIA's RFC appears focused on eliciting information related to purported "harms" associated with minors' online platform use. However, numerous studies and academic research challenge the assumption that minors suffer harm from their Internet use. An independent scientific study from Oxford, for example, examined data spanning nearly 1 million individuals across 72 countries over 17 years to investigate the impact of Internet use on such individuals' well-being.⁷ The study found no evidence linking platform use to widespread psychological harm, and in particular found that Internet adoption and use by younger individuals generally yielded more positive outcomes in terms of well-being than for such younger individuals' older counterparts.⁸ Other statisticians and researchers continue to conduct research questioning widespread notions that platform use is detrimental to mental health, causes addiction, or leads to other harms.⁹

⁵ RFC at 67737, Question 3.

⁶ See, e.g., Privacy for America Framework at §§ 3(K)-(M).

⁷ See Oxford Internet Institute, *No evidence linking Facebook adoption and negative well-being: Oxford study* (Aug. 9, 2023), located [here](#); see also Elizabeth Nolan Brown, *Study: Around the World, Internet Use Linked to Greater Well-Being*, REASON MAGAZINE (Apr. 3, 2023), located [here](#).

⁸ *Id.*

⁹ See, e.g. Aaron Brown, *The Statistically Flawed Evidence That Social Media Is Causing the Teen Mental Health Crisis*, REASON MAGAZINE (Mar. 9, 2023), located [here](#).

The RFC asks generally if particular arrangements or other factors allow for or enhance the benefits that minors enjoy from online platforms.¹⁰ Indeed, the benefits that minors receive in terms of access to online platforms and content are enhanced by and made possible due to advertising. The NTIA’s recommendations to the Administration should recognize that society at-large benefits greatly from advertising, which drives equitable access to free and low-cost information and resources. One study found that the free content and information available online to consumers—including minors—provides \$30,000 in value per consumer each year, measured in 2017 dollars.¹¹ If this significant subsidy for online offerings and resources were not available, online content and resources would be hidden behind paywalls, creating a barrier for consumers with less expendable income to reach everything the Internet offers. Such a model would threaten to disrupt the egalitarian nature of the Internet by creating a two-tiered system in which access to crucial products and services online would be limited to parents and children with the ability to pay for them. Under this model, some minors would potentially lose the ability to reach the same quality or quantity of information, products, and services they rely on today and that would become available in the future.

In addition to the benefits data-driven advertising provides to minors and society in general, data-driven advertising also serves the important function of driving healthy economic competition and diversity in the marketplace. Data-driven advertising enables small companies to compete with the world’s largest enterprises, which stratifies economic power and supports a more vibrant consumer economy for both parents and children. Programmatic digital advertising exchanges allow small businesses efficiently and inexpensively to reach current and potential customers interested in their niche offerings. This ecosystem helps allow new companies to enter markets and develop products and services that benefit minors, children, and consumers overall. In the RFC, the NTIA asks commenters to describe whether new entrants to markets can “offer innovation” or whether “barriers... hamper such innovation.”¹² When developing its recommendations, the NTIA should consider the entry barriers that digital advertising helps dispel for start-ups and small businesses. Any recommendations related to minors must be carefully crafted to ensure that small businesses and new market entrants do not disproportionately shoulder burdens while large, well-resourced companies and platforms continue to thrive in the digital economy.

The NTIA’s recommendations should also recognize that digital advertising contributes significantly to U.S. employment and economic growth, which is crucial to creating a path for advancement and prosperity for minors’ futures. In 2020 alone, online advertising activity contributed \$3.9 trillion to the \$20.9 trillion total U.S. gross domestic product.¹³ In addition, more than 28 million jobs and \$2.1 trillion in salaries and wages were generated by the commercial Internet in 2020.¹⁴ Consumers—including minors and their parents—thus benefit from digital advertising both in terms of greater access to diverse online resources and from its increased employment and economic opportunities. Recommendations related to protections for

¹⁰ See RFC at 67738, Question 4.

¹¹ J. Howard Beales & Andrew Stivers, *An Information Economy Without Data* at 2 (Nov. 2022), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4279947.

¹² RFC at 67738, Question 13b.

¹³ IHS Markit, *The economic impact of advertising on the US economy 2018 – 2026* at 12 (Nov. 2021), located [here](#).

¹⁴ *Id.* at 5, 13 (Nov. 2021).

minors online must ensure that digital advertising can continue to help fuel a robust U.S. economy, which benefits parents and minors alike.

II. Self-Regulatory Entities, Platforms, and Congress Have Created Robust Protections for Minors Online, and Laws Governing Minors' Access to Digital Resources Have Been Subject to Constitutional Challenges

As the NTIA reviews input on the topic of minors' health, safety, and privacy online, it should consider the existing backdrop of legal and other protections for minors that have existed for decades. These protections have built-in structures to allow for updates to address new developments and technological advancements. The Children's Online Privacy Protection Act ("COPPA"), for example, passed Congress in 1998 and already provides robust protections for collection and use of data from children online.¹⁵ COPPA imposes parental consent, notice, and data minimization requirements on operators of websites or online services directed to children.¹⁶ In addition, Congress has proposed several legislative vehicles that would either update legal protections under COPPA or add brand new protections to the landscape during the 117th and 118th Congress.¹⁷ Moreover, COPPA permits Federal Trade Commission ("FTC") rulemaking. The COPPA Rule, which was first promulgated by the FTC in April 2000, has been reviewed several times to solicit input related to changes in the marketplace and technology.¹⁸ The COPPA Rule was reviewed in 2011 and again in 2019, demonstrating that the government has tools at its fingertips to update as needed its regulations under existing privacy law that protects minors.¹⁹ The NTIA should acknowledge and support these existing protections for minors in its recommendations to the Administration.

In addition to the protections for minors that are already embedded in federal law, the ANA itself has a long history of administering self-regulatory programs which help protect minors online. For example, the ANA's Guidelines for Ethical Business Practice specifically address compliance with COPPA and emphasize the law's foundational requirements of parental consent, data minimization, and data security in relation to data collected from children online (among other COPPA requirements).²⁰ The ANA is also a founding member of the advertising self-regulatory program that includes the Children's Advertising Review Unit ("CARU"), an entity focused on examining advertising directed to children to assure it is truthful and non-deceptive, and the first FTC-approved COPPA safe-harbor program.²¹ In addition, online platforms regularly review and examine their own internal policies and practices related to

¹⁵ 16 U.S.C. §§ 6501 – 6505.

¹⁶ *Id.*

¹⁷ *See, e.g.* Children and Teens' Online Privacy Protection Act (COPPA 2.0), S. 1418, 118th Cong., located [here](#); Kids Online Safety Act (KOSA), S. 1409, 118th Cong., located [here](#).

¹⁸ 16 C.F.R. § 312.

¹⁹ Request for Public Comment on the Federal Trade Commission's Implementation of the Children's Online Privacy Protection Rule, 84 Fed. Reg. 35,842-47 (Jul. 25, 2019); Request for Public Comment on Proposed Children's Online Privacy Protection Rule, 76 Fed. Reg. 59804-59883 (Sept. 27, 2011).

²⁰ ANA, *Guidelines for Ethical Business Practice* (2017), Part I, § VII, Art. 3, located [here](#).

²¹ Better Business Bureau, *Twenty Years of Successful Co-Regulation Under COPPA: A Model for Fostering Consumer Privacy* at 7 (Oct. 2019), located [here](#). The Federal Trade Commission approved CARU as a COPPA self-regulatory program on February 1, 2001. *Id.*

minors, and actively consider ways to modernize and update them to provide more robust protections.

The NTIA should exercise caution in advocating for or supporting limitations on advertising or messaging to minors via online platforms. Excessive limits on platforms, advertising, and ways minors can access online messaging in Arkansas, Texas, Louisiana, Utah, and California have recently been subject to legal challenges.²² In *NetChoice v. Bonta*, for instance, a California court struck down on First Amendment grounds a law that prescribed default features and age-gating.²³ The judicial scrutiny of these new laws, aimed directly at platforms, demonstrates how limiting minors' access to online content can go too far and infringe upon constitutional rights that protect minors' ability to access truthful, lawful speech.

In short, any recommendations of the NTIA to the Administration should be tailored to reflect ongoing developments in the privacy landscape, which include legal challenges to state laws limiting platform use that have engendered constitutional questions, ongoing legislative efforts by Congress to bolster the already strong protections for minors online, as well as evergreen, robust enforcement of longstanding self-regulatory codes that provide additional protections for minors in online spaces.

III. Congress Is Best Suited to Add to Existing Legal Protections and Industry Self-Regulatory Codes to Protect Minors Online Through the Approach Taken in the Privacy for America Framework

The NTIA's recommendations to the Administration should urge it to support Congress' efforts to pass preemptive federal privacy legislation that would provide protections for all U.S. residents, including minors. The democratically-elected members of Congress are best positioned to pass a comprehensive, preemptive national privacy standard that includes robust protections for minors' health, safety, and privacy online. The ANA, as a member of Privacy for America, supports the Framework, a comprehensive legislative privacy model that would, for the first time, define online privacy protections for all Americans. Legislators should look to the Framework, which would create certain enhanced protections for 13- to 15-year-olds (commonly referred to as "tweens") and add meaningful new protections to the current COPPA legal landscape. Among other protections, the Framework would:

- Prohibit entities from transferring data associated with tweens to third parties when such entities have actual knowledge of age;
- Outlaw payment to tweens in exchange for personal data, except under a contract to which a parent or legal guardian is a party; and

²² See Skye Witley, *Online Age-Check State Laws Run Into Constitutional Headwinds*, BLOOMBERG LAW (Sept. 19, 2023), located [here](#). See also Andrew DeMillo, *Federal judge blocks Arkansas law that requires parental consent for minors to create social media accounts*, FORTUNE (Sept. 1, 2023), located [here](#); Ben Sperry, International Center for Law & Economics, *Op-Ed: State children's online safety laws fail to help parents protect their teens*, THE CENTER SQUARE (Apr. 21, 2023), located [here](#).

²³ *NetChoice LLC v. Rob Bonta*, Order Granting Motion for Preliminary Injunction, Case No. 5:22-cv-08861-BLF (Sept. 18, 2023), located [here](#).

- Require entities to implement data deletion/eraser requirements, allowing individuals to delete data posted online when they were tweens.²⁴

These protections would significantly advance existing laws and regulations that protect minors in online spaces. The NTIA should encourage Congress to look to the Framework since it is a workable and beneficial way to impose new protections for minors online.

IV. Conclusion

These Comments demonstrate that access to the Internet is extremely useful for minors, and that advertising greatly benefits minors, society, and the economy. In addition, self-regulatory entities, platforms, and Congress have created robust protections for minors online. Our Comments caution against restricting minors' access to digital resources, as previous efforts to do so have been subject to constitutional challenges. Finally, these Comments recognize that Congress is best suited to add to existing legal protections and industry self-regulatory codes to protect minors online.

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Thank you for the opportunity to submit Comments on this important topic. Please do not hesitate to contact us with any questions regarding this submission.

²⁴ Privacy for America Framework at §§ 3(K)-(M).